

J. Chandra Prakash vs V. B. Sujatha @ Pooja on 31 March, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No.5452 of 2018
C/W MFA No.1498 of 2019

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 31ST DAY OF MARCH 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL
MISCELLANEOUS FIRST APPEAL NO.5452 OF 2018 (FC)
C/W
MISCELLANEOUS FIRST APPEAL NO.1498 OF 2019 (FC)

IN M.F.A. NO.5452 OF 2018
BETWEEN:

Digitally signed
by RUPA V
Location: High
Court of
Karnataka

1. J. CHANDRA PRAKASH
S/O LATE JAVARASETTY
AGED ABOUT 52 YEARS
R/AT 143, J V ARCADE
SURYA BAKERY CIRCLE
METGAHALLI POST
MYSORE - 570 016.

...APPELLANT

(BY SRI. RAGHAVENDRA K, ADV.,)
AND:

1. V.B. SUJATHA @ POOJA
W/O J. CHANDRA PRAKASH
AGED ABOUT 46 YEARS
R/AT NO. 1/11, MOUNT JOY ROAD
HANUMANTHANAGAR
BANGALORE - 560 019.

...RESPONDENT

(BY SRI. RAJAGOPALA NAIDU, ADV.,)

THIS MFA IS FILED U/S 19(1) OF FAMILY COURTS ACT,
1984, AGAINST THE JUDGMENT AND DECREE
DATED:21.03.2018 PASSED IN MC NO.531/2013 ON THE FILE

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MFA No.5452 of 2018
C/W MFA No.1498 of 2019

OF THE II ADDITIONAL PRL. JUDGE, FAMILY COURT,
BENGALURU, ALLOWING THE PETITION FILED UNDER
SECTION 9 OF HINDU MARRIAGE ACT.

IN M.F.A. NO.1498 OF 2019
BETWEEN:

1. J. CHANDRA PRAKASH
S/O LATE JAVARASETTY
AGED ABOUT 52 YEARS
R/AT 143, J.V. ARCADE
SURYA BAKERY CIRCLE
METGAHALLI POST,
MYSORE-570 016.

...APPELLANT

(BY SRI. RAGHAVENDRA K, ADV.,)
AND:

1. V.B. SUJATHA @ POOJA
W/O J. CHANDRA PRAKASH
AGED ABOUT 46 YEARS
R/AT NO.1/11, MOUNT JOY ROAD
HANUMANTHANAGAR, BANGALORE-560 019.

...RESPONDENT

(BY SRI. RAJAGOPALA NAIDU, ADV.,)

THIS MFA IS FILED U/S. 19(1) OF FAMILY COURTS ACT,
AGAINST THE JUDGMENT AND DECREE DATED 21/03/2018,
PASSED IN MC. NO.1964/2011, ON THE FILE OF THE II
ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT, BENGALURU,
DISMISSING THE PETITION FILED U/SEC.13(1) (ia) & (ib) OF
HINDU MARRIAGE ACT.

THESE APPEALS COMING ON FOR ORDERS, THIS DAY
ALOK ARADHE J., DELIVERED THE FOLLOWING:

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MFA No.5452 of 2018
C/W MFA No.1498 of 2019

JUDGMENT

Parties along with their counsel are present. These appeals under Section 19(1) of the Family Courts Act, 1984 have been filed against common judgment and decree dated 21.03.2018 passed by the Family Court by which petition filed by the husband under Section 13 of the Hindu Marriage Act, 1955 (hereinafter referred to as 'the Act') has been dismissed and the petition filed by the wife under Section 9 of the Act has been allowed.

2. Learned counsel for the parties jointly submit that the dispute between the parties has been amicably resolved.

3. In this connection, our attention has been invited to the memo which has been duly signed by the appellant as well as respondent. The terms and conditions of the compromise read as under:

1. During the pendency of the above Miscellaneous First Appeals, at the intervention of their common friends and well-wishers, the parties to the above Appeals have settled the dispute amicably out of Court.

(a) In terms of the settlement arrived at between the parties, the appellants-husband in the above Appeals, is required to pay a sum of Rs.12,00,000/- (Rupees Twelve Lakhs only) to the respondent-wife herein, in full and final settlement of the claim of the respondent-wife as permanent alimony.

(b) In terms of the settlement arrived at, the appellant-husband in the above Appeals is paying the agreed sum of Rs.12,00,000/-

(Rupees Twelve Lakhs only) by way of Demand Draft bearing in the following manner:-

A. Rs.5,00,000/- (Rupees Five Lakhs only) by way of Demand Draft, bearing No.253297, dated 27.03.2023, drawn on Canara Bank, Thippur Branch, Mysore.

B. Rs.4,00,000/- (Rupees Four Lakhs Only) by way of Demand Draft, bearing No.303288, dated 27.03.2023, drawn on Canara Bank, J.P. Nagar 7th Phase, Bangalore.

C. Rs.3,00,000/- (Rupees Three Lakhs Only) by way of Demand Draft, bearing No.091772, dated 27.03.2023, drawn on Bank of Baroda, Adugodi, Bengaluru.

to the respondent-wife, towards her permanent alimony in full and final settlement of her claim.

(c) The respondent-wife hereby acknowledges the receipt of the same, in full and final settlement of her claim.

5. The respondent-wife hereby agree to allow the above said Miscellaneous First Appeals, i.e., Miscellaneous First Appeal No.5452/2018 C/w Miscellaneous First Appeal No.1498/2019 and to

dissolve their marriage solemnized on 03.08.1995 at Dwaraka Bhavan, K.R. Road, Bengaluru, by a decree of divorce.

6. In view of the settlement arrived at between the parties to the above Appeals, both the appellant and the respondent herein in the above Miscellaneous First Appeals, have agreed to withdraw the cases filed as against each other which are mentioned hereunder:

The respondent wife agrees to withdraw the following Cases filed by her against her husband, i.e., the appellant herein i. O.S.No.184/2018 pending on the file of the III Addl. Principal Judge, Family Court, Bengaluru, seeking the relief of an injunction against the appellant-husband Sister.

ii. C.C.No.63/2022 Pending on the file of the II Addl. Chief Metropolitan Magistrate, Bengaluru, filed against the appellant herein, for offences punishable under Sections 120-B, 420, 493, 495, 499, 500 and 506-B of the Indian Penal Code.

iii. C.C.No.9508/2021 pending on the file of the II Addl. Chief Metropolitan Magistrate, Bengaluru, filed against the appellant arising out of crime No.297/2018 registered at Konanakunte Police Station, Bengaluru, Offender u/s 323, 504 r/w 506 IPC.

iv. M.C. 30/2013 MMTC V(5) granted an order Rs.5,000/- for maintenance to Plaintiff Sujatha.

v. M.C. 698/2018 III F C Bengaluru granted EX Party Order for Rs.10,000/- to Plaintiff for Maintenance.

vi. M.C. 452/2019 Plaintiff filed for recovery in III F C Bengaluru.

vii. EX 7/2019 Plaintiff filed for attachment in I FC Bangalore for movable property.

4. In view of compromise arrived at between the parties, the marriage performed on 03.08.1995 is dissolved by a decree of divorce. The appellant -

husband has paid a sum of Rs.12,00,000/- by way of demand draft to the respondent - wife, the receipt of which is also acknowledged by her.

Accordingly, the appeals are disposed of in terms of compromise arrived at between the parties.

Consequently, the pending interlocutory applications, if any, are also disposed of.

Sd/-

JUDGE Sd/-

JUDGE RV